

FEDERAL MARITIME COMMISSION

Office of the Administrative Law Judges

JOSH ANYAOSA, *Claimant*

v.

NIDSAN SHIPPING, INC., *Respondent*.

DOCKET NO. 2031(I)

Served: January 20, 2026

ORDER OF: Richard AMBROW, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION

Claimant Josh Anyaosah (“Claimant”) submitted a Claim, along with accompanying exhibits, alleging that Respondent Nidsan Shipping, Inc. (“Nidsan” or “Respondent”), violated 46 U.S.C. §§ 41102(c), as well 46 C.F.R. §§ 30701, 30704, and 40502. Claimant also alleges that Respondent breached its contractual obligations and acted negligently.

In short, Claimant hired Respondent, a registered non-vessel operating common carrier (“NVOCC”), to help ship containers from the United States. Two of the containers, however, were transported to the incorrect destination. Claimant argues that he is entitled to more than \$47,000 in reparations. Respondent argues that blame for the mistake lies elsewhere.

Upon reviewing the record, I find that Claimant has not demonstrated a valid claim. Although Claimant was given an opportunity to demonstrate that Respondent’s allegedly unreasonable acts occurred on a normal, customary and continuous basis, Claimant did not provide any evidence to support that element of a § 41102(c) claim. Claimant’s other claims fall outside of the Commission’s jurisdiction. Finally, while Claimant was given the opportunity to comment on whether a claim exists under § 41104(a)(4), Claimant did not demonstrate that a viable claim under that section exists. Therefore, the Claim is **DENIED** and **DISMISSED**.

II. BACKGROUND

A. Procedural History

Claimant filed the Claim and exhibits with the Office of the Secretary on May 14, 2025. (*See Claim*). The Claim was served on May 20, 2025. (*See Notice of Filing of Small Claims*

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

Complaint and Assignment (“NOF”). The NOF indicated that Respondent must file a response to the claim by June 16, 2025. (*See* NOF, at 1).

Respondent did not file a response by April 21, 2025. (*See* Email of July 10, 2025, from Judges@fmc.gov (“July 10 Email”). The Commission’s Office of Administrative Law Judges (“OALJ”) sent an email to Respondent on July 10, 2025 (“July 10 Email”). The July 10 Email noted that Respondent did not respond to the Claim; the email also stated that Respondent must respond by July 24, 2025, or that it may be defaulted. (*See* July 10 Email). On July 24, 2025, Respondent filed its Response to Complaint Filed by Josh Anyaosah (“Answer”). (*See* Answer).

On July 27, 2025, Claimant filed a Counter-Response to Nidsan, along with accompanying exhibits, including an email from an individual named Chukwuebuka Okoye (“Counter-Response”). On July 28, 2025, OALJ sent an email to the parties informing them that the Commission’s procedural rules do not provide for a counter response (the “July 28 Email”). (*See* July 28 Email). The July 28 Email nevertheless indicated that the OALJ would soon be requesting additional information from the parties, and that Claimant would have the opportunity to include the information in the Counter-Response at that time. (*Id.*).²

On August 7, 2025, Small Claims Officer (“SCO”) Theresa Dike, to whom this matter was assigned, issued a Request for Additional Documents and Information (“RFI”). (*See* RFI). The RFI sought additional documents and information from the parties by September 4, 2025, and permitted the parties to reply to the other party’s response on or before September 18, 2025. (RFI, at 4). The RFI is discussed further below.

Claimant responded to the RFI via an email dated August 30, 2025 (“Claimant’s RFI Response”). Claimant’s RFI Response included a PDF with a narrative response, 19 other PDFs, and 13 images, including screenshots of text dialogue. (*See* Claimant’s RFI Response).

On September 4, 2025, Respondent filed its response to the RFI, which included several PDFs (“Respondent’s RFI Response”).

On September 8, 2025, Claimant filed a reply to the Respondent’s RFI Response (“Claimant’s First RFI Reply”).

On September 17, 2025, Claimant filed a second reply to the Respondent’s RFI Response, which asks several questions of Respondent (“Claimant’s Second RFI Reply”).

On October 1, 2025, due to a lapse of appropriations, the OALJ was unavailable through November 13, 2025.

This matter was reassigned to me on January 14, 2026.

² I reviewed the Counter-Response, including the statement by Okoye. I do not discuss them further, but they do not affect my analysis below.

B. Arguments

In a nutshell, Claimant asserts that it gave three containers to Respondent to have delivered overseas, two to Sierra Leone, and one to Nigeria. (Claim, at ¶ III). Two of them, however, ended up in the wrong location. Container MSBU5490705 should have gone to Nigeria, and container MSDU5151740 should have gone to Sierra Leone. Container MSBU5490705, however, went to Sierra Leone, and container MSDU5151740 was sent to Nigeria. (Claim, at ¶ III.A). Claimant argues that the fault for the mistake ultimately lies with Respondent because of its lack of due diligence. (*Id.*). Claimant alleges that Respondent violated 46 U.S.C. §§ 41102(c), 30701, 30704, and 40502, breached its contract and behaved negligently.

For its part, Respondent asserts that it made no errors. Instead, the trucker, whom Claimant appointed, and over whom Respondent had no control, erroneously ingated the wrong container. (*See Answer*).

In her RFI, SCO Dike noted that § 41102(c): “. . . requires a demonstration that the alleged conduct ‘is occurring on a normal, customary, and continuous basis[’] pursuant to 46 C.F.R. § 545.4. Therefore, to prevail in a section 41102(c) complaint, it must be demonstrated that the respondent frequently engaged in the alleged conduct described as a violation.” (RFI, at 1). SCO Dike also wrote:

Section 41104(a)(4) provides that a common carrier may not for service pursuant to a tariff, engage in any **unfair** or unjustly discriminatory practice in the matter of: (A) rates or charges; (B) cargo classifications; (C) cargo space accommodations or other facilities, with due regard being given to the proper loading of the vessel and the available tonnage; (D) **loading and landing of freight**; or (E) adjustment and settlement of claims.” 46 U.S.C. § 41104(a)(4)(A-E) (emphasis added). The parties should discuss in their response whether the provisions of section 41104(a)(4)(A-E) apply to this complaint and why or why not.

(RFI, at 3-4 (bold in original)).

In Claimant’s RFI Response, Claimant described, among other things, the original booking of the shipments, his communications with Nidsan after discovery of the errors, Nidsan’s lack of communication in helping to solve the problem, and evidence of damages. (*See generally* Claimant RFI Response). Claimant did not discuss whether the errors described occurred on a normal, customary or continuous basis, nor did Claimant address § 41104(a)(4).

In Respondent’s RFI Response, Respondent maintained its position that the trucker made the mistake. (*See generally* Respondent’s RFI Response).

Claimant made two replies to Respondent’s RFI Response. In its reply of September 8, 2025, Claimant argued that even if the trucker erred, Respondent, a freight forwarder, negligently failed to verify that each container was to be shipped to the correct destination. (*See generally* Claimant’s First RFI Reply). Claimant also commented on § 41104(a)(4), stating that Respondent may have violated § 41104(a)(4)(E) for improper adjustment and settlement of claims, but otherwise did not appear to violate § 41104(a)(4)(A-D). Claimant noted that

Respondent closed its misdelivery claim in relation to container MSBU5490705, and Respondent ignored Claimant's messages. (Claimant's First RFI Reply, at 3).

In Claimant's second reply, dated September 17, 2025, Claimant again reiterated that even if the trucker erred, it was Respondent's responsibility to catch the error. Claimant also asks questions, presumably of Respondent, aimed at determining whether Respondent did anything to catch and correct any errors by the trucker. (*See* Claimant's Second RFI Reply).

III. FINDINGS OF FACT

1. I take official notice that Respondent is an FMC-licensed NVOCC based in New York. (*See* <https://www2.fmc.gov/oti/>; *see also* 46 C.F.R. § 502.226).
2. Claimant is an individual. (Verified Complaint, at ¶ I).
3. The record contains a booking confirmation on Respondent's letterhead with booking no. EBKG11334145, for transportation from Boston to Tincan Islands, Lagos, Nigeria. (*See* Respondent's RFI Response, Nidsan Confirmation EBKG11334145.pdf³). That booking included a vehicle. (Claimant's RFI Response, text image⁴ with date January 6, 2025).
4. The record contains a draft copy of Bill of Lading ("BOL") No. MEDUOK547851 under the booking reference EBKG11334145, for the transportation of container no. MSBU5490705 from Boston to Tincan, Lagos, Nigeria. (*See* Claim, Exhibits, at 4 of 17⁵). The container was supposed to contain a vehicle and hospital beds. (*Id.*). The carrier is Mediterranean Shipping Company, S.A. ("MSC"), Respondent is identified as the shipper, and Okoye is identified as the Consignee. (*Id.*).
5. The record contains an email from an MSC employee to Claimant and Respondent. (Claimant's RFI Response, Update from MSC.pdf). It indicates that container no. MSBU5490705 was assigned to booking EBKG11334145. (*Id.*). But, on January 6, 2025, container no. MSDU5151740 was ingated for booking EBKG11334145. (*Id.*). MSC changed the booking to show container MSDU5151740. (*Id.*).
6. The record contains BOL No. MEDUOK547851 under the booking reference EBKG11334145, for the transportation of container no. MSDU5151740 from Boston to Tincan, Lagos, Nigeria. (*See also* Respondent's RFI Response, Supporting Documents.pdf, at

³ I refer to PDF attachments to Claimant's RFI Response, Respondent's RFI Response, and Claimant's First and Second RFI Reply by the names of the PDF.

⁴ As noted in the main text, Claimant's RFI Response includes 13 images, including several images of text exchanges.

⁵ The exhibits to the Claim contain a 17-page PDF. I cite page 4 of the 17-page PDF in the main text. Other references in the findings of fact to this 17-page PDF will be in a similar format.

6 of 6). The carrier is MSC, Respondent is identified as the shipper, and Okoye is identified as the Consignee. (*Id.*).

7. Tracking information for BOL No. MEDUOK547851 shows that container no. MSDU5151740 arrived at the container yard on January 6, 2025, that the container was loaded onto the vessel on January 17, 2025, and was discharged from the vessel in Lagos, Nigeria, on March 25, 2025. (Claim, Exhibits, at 1-2 of 17).
8. The record contains a booking confirmation on Respondent's letterhead with booking no. EBKG11344584, for transportation from Boston to Freetown, Sierra Leone. (*See* Respondent's RFI Response, Nidsan Confirmation_EBKG11344584.pdf).
9. The record contains BOL No. MEDUOK622779 under the booking reference EBKG11344584 for the transportation of container no. MSBU5490705 from Boston to Freetown, Sierra Leone. (*See* Respondent's RFI Response, Supporting Documents.pdf, at 3 of 6). The carrier is MSC, Respondent is identified as the shipper, and the Office of the First Lady is identified as the Consignee. (*Id.*).
10. Tracking information for BOL No. MEDUOK622779 shows that container no. MSBU5490705 arrived at the container yard on January 3, 2025, that the container was loaded onto the vessel on January 17, 2025, and was discharged from the vessel on April 16, 2025. (Claimant's RFI Response, Tracking EBKG11344584.pdf).
11. Claimant learned that containers MSBU5490705 and MSDU5151740 were headed to the wrong destination on March 24, 2025. (Claim, at ¶ III.X; *see also* Claimant's RFI Response, mobile call log for 6174596050.pdf (showing calls commencing March 24, 2025)).
12. The record contains emails dated April 13, 2025, April 15, 2025, April 27, 2025, and April 28, 2025. (*See* Claimant's RFI Response, at Attempt to Resolve with Nidsan CEO.pdf; Attempt to Resolve Complaint with Nidsan.pdf; Gmail – Complaint April 15.pdf; Checked case ##CASEID_CAS-20641626-T6B5T6## No Response.pdf). In general, Claimant asks in these emails for help to have the containers shipped to their correct destinations. In the emails from April 27 and 28, Claimant complains that Respondent has not been responsive. (*Id.*).

IV. ANALYSIS

A. Burden of Proof

To prevail in a proceeding brought to enforce the Shipping Act, “a complainant has the burden of proving by a preponderance of the evidence that the respondent violated the Act.” (*Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, Dkt. No. 17-07, 1 F.M.C.2d 264, 2019 WL 1376529, at *13 (ALJ Mar. 25, 2019) (settled on appeal, 1 F.M.C.2d 502 (FMC Dec. 19, 2019)); *see also* 5 U.S.C. § 556(d)).

B. Alleged Violation of 46 U.S.C. § 41102(c)

Claimant alleges that Respondent violated 46 U.S.C. § 41102(c). That statute provides that: “[a] common carrier, marine terminal operator, or ocean transportation intermediary, acting

alone or in conjunction with another person, directly or indirectly, may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling storing or delivering property.” (46 U.S.C. § 41102(c)).

By regulation, the Commission identified the following five elements of a claim under § 41102(c):

- (a) the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) the practice or regulation relates to or is connected with receiving, handling, storing or delivering property; (d) the practice or regulation is unjust or unreasonable; and (e) the practice proximately caused the claimed loss.

(46 C.F.R. § 545.4).

The Commission issued 46 C.F.R. § 545.4 in 2018. In the rulemaking for that rule, the Commission stated that: “Section 41102(c) was never intended to be a method of resolving every dispute that arises in the receiving, handling, storing or delivering of cargo.” (*Interpretive Rule, Shipping Act of 1984* (“*Interpretive Rule*”), 83 FED. REG. 64478, 64479). Instead, the Commission clarified that, historically, a violation of § 41102(c) (and its predecessor statute) requires a showing that, “. . . the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business.” (*Id.*) (citations omitted). In short, § 41102(c) does not create a remedy for a one-time unreasonable act. To state a claim under § 41102(c), the act at issue must occur on a normal, customary and continuous basis. (46 U.S.C. § 41102(c); *see also Crocus Investments, LLC v. Marine Trans. Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021)).

Consistent with this authority discussed above, SCO Dike specifically informed Claimant that a violation of § 41102(c), as interpreted by the Commission via § 545.4, requires a demonstration that the alleged conduct is occurring on a normal, customary, and continuous basis, and that the Claimant must show that the respondent frequently engaged in the alleged conduct described as a violation. (RFI, at 1).

Here, Claimant complains of Respondent’s conduct in two ways. First, Claimant argues that Respondent failed to ensure that his containers went to the correct destinations. (Claim, at ¶ V; Claimant’s First RFI Reply, at 1-2; Claimant’s Second RFI Reply). Assuming, without deciding, that Respondent was obligated to ensure that the containers were not misdelivered, there is no evidence that Respondent committed similar failures in other instances.

Second, Claimant argues that Respondent failed to respond to his communications, especially during the mid-late April timeframe. (Claimant’s RFI Response, at 3-4; Claimant’s First RFI Reply, at 3-4; Claimant’s Second RFI Reply). Again, there is no evidence that Respondent habitually fails to respond to customer complaints.

Because the burden of proof is on Claimant, and because Claimant does not produce any evidence showing how the alleged forms of misconduct conduct occurred on a normal,

customary or continuous basis, Claimant's Claim is **DENIED** to the extent it alleges that Respondent violated § 41102(c). I do not address the other elements of a claim under § 41102(c).

C. Alleged Violation of Carriage of Goods By Sea Act, Breach of Contract, and Negligence

Claimant alleges that Respondent violated the Carriage of Goods By Sea Act ("COGSA"), 46 U.S.C. §§ 30701 and 30704. Claimant also alleges Respondent breached its contract, including a shipping contract (46 U.S.C. § 40502), and was negligent. Breach of contract and negligence are common law claims.

In general, while the Commission has exclusive jurisdiction over claims arising under the Shipping Act, the Commission does not have jurisdiction over common law claims. (*Cargo One, Inc. v. COSCO Container Lines Co., Ltd.*, Dkt. No. 99-24, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000) (noting that claims alleging breach of contract violations are not properly before the Commission)). Nor are COGSA claims within the Commission's jurisdiction. (*See A.N. Beringer, Inc. v. Marlin Marine Services, Inc.*, Dkt. No. 1652(I), 1990 WL 427469, at *5 (Settlement Officer, Nov. 14, 1990) (citing *Pilgrim Furniture Co., Inc. v. American-Hawaiian Steamship Co.*, 2 U.S.M.C. 517, 518 (U.S.M.C., Feb. 13, 1941))).

Claimant also alleges a violation of "46 U.S.C. section 3(2)." (Claim, at ¶ V). It is unclear what Claimant is referencing. There is no 46 U.S.C. § 3. Section 3 of the Shipping Act of 1984 includes definitions, but does not provide any remedies. Regardless, whatever Claimant is referencing, Commission's jurisdiction is limited to alleged violations of the Shipping Act.

Therefore, the Claim is **DENIED** to the extent it alleges violations of COGSA, or contains claims arising under common law.

D. Potential Claim under 46 U.S.C. § 41104(a)(4)

In her RFI, SCO Dike asked the parties to comment on whether the provisions of § 41104(a)(4)(A-E) are applicable. (RFI, at 3-4). In Claimant's First RFI Reply, Claimant commented that § 41104(a)(4)(E) may be applicable because of how Respondent handled Claimant's claim, including failing to respond to Claimant's attempted communications. (Claimant's First RFI Reply, at 3-4; *see also* Findings of Fact, at ¶ 12).

Section 41102(a)(4)(E) provides: "A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not . . . for service pursuant to a tariff, engage in any unfair or unjustly discriminatory practice in the matter of . . . (E) adjustment and settlement of claims[.]"

As with Claimant's claim under § 41102(c), it is unclear how Respondent's alleged failure to respond to communications in this case constitutes a "practice." In *DSW Int'l, Inc. v. Commonwealth Shipping, Inc.*, Dkt. No. 1898(F), 2011 WL 7144019, *15 (ALJ Mar. 29, 2011)

(*aff'd in relevant part*, 2012 WL 11914710, at *6 (FMC, Jul. 23, 2012)), in discussing a claim for a violation of § 10(b)(4)(E) of the Shipping Act of 1984,⁶ the ALJ wrote:

With regard to a contention that alleged failure of Respondents to provide DSW International with more information about the fate of the cars violated section 10(b)(4)(E), the evidence presented by DSW International does not prove by a preponderance of the evidence that Respondents' failure to provide DSW International with more information was an "unfair or unjustly discriminatory practice."

In short, assuming, without deciding, that the record shows that Respondent handled Claimant's claim unfairly, there is no indication that Respondent has a practice of unfairly handling claims. Therefore, because the record does not contain evidence of an unfair or unjustly discriminatory practice, I find that there is no viable claim under § 41104(a)(4). I do not need to address the other elements of a claim under § 41104(a)(4)(E).

V. CONCLUSION

For the reasons discussed above, I **HEREBY ORDER** that Claimant's Claim is **DENIED** and **DISMISSED**. It is

FURTHER ORDERED that this matter is **DISCONTINUED**.

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Small Claims Officer

⁶ This was the former codification of current 46 U.S.C. § 41104(a)(4)(E).